

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2389 of 1997

Yousuf Ali and another

----- Plaintiff-Petitioners

=Versus=

Asab Ali (unmarried) and Md. Fazlu Miah
being dead his legal heirs Siab Ali and others

----Defendant-Opposite Parties

Mr. H. K. Abdul Hye, Advocate

-----For the Petitioners

Mr. Surajit Bhattacharjee, Advocate

---For the Opposite Party Nos.1-8

Heard on 25.01.2018

Judgment on 14.02.2018

At the instance of the present-plaintiff-respondent-petitioners, Yusuf Ali and another, this Rule has been issued calling upon the opposite party Nos.1 and 2 to show cause as to why the impugned judgment and decree dated 07.06.1995 passed by the learned Subordinate Judge, 3rd court, Sylhet in Title Appeal No.122 of 1992 reversing the judgment and decree dated 15.08.1992 passed by the Senior Assistant Judge, Sadar, Sylhet in Title Suit No.19 of 1989 decreeing the suit should not be set aside.

The relevant facts for disposal of the Rule, *inter alia*, are that the present-petitioners as the plaintiffs filed the Title Suit No.19 of 1989 for Specific Performance of Contract (Bainanama) dated 18.12.1985 for purchasing a land. The statement made in the plaint, in brief, are that the

suit land described in the schedule of the plaint measuring 98 decimals was originally owned by the defendant Nos.1-3 who entered into a contract with the present-plaintiff-petitioners on 18.12.1985 to sale after fixing price of the land at Tk.25,000/- wherein, the defendant No.4 Md. Fazlu Miah acted as a middle man. The defendant-opposite party Nos.1-3 receipt Tk.2,000/- in cash as an advance on signing the Baina and possession was delivered of two Floats and also promised to register sale deed after vacating a house from another Float and another receiving the remaining amount of Tk.5,000/-. On 20.11.1988 the present-opposite parties denied to give a register sale deed.

The present-opposite parties as the defendant Nos.1-3 contested the suit by filing a separate written statement. The present-defendant-opposite parties No.2-3 contending, *inter-alia* that the plaintiffs collected the signatures and thump impressions upon the white papers fraudulently from them with the help of the defendant No.4, thereafter created and manufactured the Bainapatra illegally. However, the defendant No.4 contended that the defendant No.3 transferred her entire land on 23.12.1985 by a registered sale deed to him and plaintiffs created a Bainapatra inclusion with the defendant Nos. 2-3 and he was not acted as a middle man at the time of fixing price by the land for execution of the so-called Bainapatra. The defendant No.1 also denied execution of any Baina in favour of the present-plaintiffs transferred their portion of land to the defendant No.4 on 05.11.1985.

After hearing the contesting parties and considering the relevant evidence on record the trial court decreed the suit in part for measuring

land 56 ½ decimals by his judgment and decree dated 15.08.1992. Being aggrieved the predecessor of the present-opposite party No.1 being dead his legal heirs Siab Ali and others as the appellants preferred the Title Appeal No.122 of 1992 in the court of learned District Judge, Sylhet which was heard by the learned Subordinate Judge, Sylhet on transfer who by his judgment and decree dated 07.06.1995 allowed the appeal thereby setting aside the judgment and decree passed by the trial court. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the said impugned judgment and decree passed by the appellate court below and the present Rule was issued thereupon.

Mr. H. K. Abdul Hye, the learned Advocate appearing for the present-petitioners submits that the learned appellate court have committed an error of law by reversing the judgment and decree passed by the trial court without controverting and reversing the findings thus, resulted in an error in the decision occasioning failure of justice, as such, the Rule should be made absolute.

The learned Advocate further submits that under the President Order No.142 of 1972 the Government was a necessary party but inadvertently the government was not made a party, therefore, the application under Order 1 Rule 9 of the Code of Civil Procedure has been made and the petitioners prayed for remand in order to make their include all the relevant parties. The learned Advocate also submits that the suit land was handed over as soon as the Baina was executed and filing the suit in the year 1989 after the limitation period which was not

raised by the present-plaintiff-opposite parties in the trial court or in the appellate court, therefore, no question of limitation, as such, the Rule should be made absolute.

The Rule has been opposed by the present substituted opposite party No.1 namely Siab Ali and others as his legal heirs of the original opposite party No.1 Asab Ali.

Mr. Surajit Bhattacharjee, the learned Advocate appearing for the opposite party No.1 submits that the plaintiff-petitioners obtained certain signature and/or thumb impression of the illiterate defendants by practicing fraud and by deceiving them when the defendants have already transferred their land by the deed dated 29.06.1955 “Exhibit-Kha” dated 05.11.1985 “Exhibit-Ga” dated 23.11.1985 “Exhibit-Gha” as such, the trial court committed an error of law by passing a partial decree, however, the appellate court set aside the judgment of the trial court after properly examining the document by way of documentary and oral evidence in the court, as such, the present-petitioners obtained the Rule by misreading this Court, as such, the Rule should be discharged.

The learned Advocate further submits that the plaintiffs utterly failed to prove receipt of money at the time of execution of Baina and also handing over possession of the suit land to the present-opposite parties pursuant to the Baina and also failed to prove the opposite parties made any offer of the balance amount of Taka 5,000/- at any stage of time, as such, the appellate court committed no error of law. The learned Advocate lastly submits that the suit filed by the present-petitioners was

not maintainable under the provision of Article 106 of the President Order No. 142 of 1972 as the Government being the necessary party was not made a party in the suit, thus, the suit is barred by law.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the Annexures therein and also perusing the materials in the lower courts' records, it appears to me that the present-plaintiff-opposite party No.1, Asab Ali filed a title suit for Specific Performance of Contract regarding the Contract/Baina dated 18.12.1985 with an intention to sale deed measuring 98 decimals appertaining to 1520, 1521, Khatian Nos. 146 and 153, Mouja Bibid Dhola, Police Station Sadar, District- Sylhet. The plaintiffs claimed that the present-opposite parties intended the land for urgent necessity of money by fixing an amount of the price land and the present-petitioners have expressed their intentions to purchase the land accordingly, a Bainanama was executed by the present-opposite party Nos. 1-3 on 18.12.1985 upon putting their thump impressions or signatures on receiving Taka 20,000/- out of Taka 25,000/-. On the other hand, the present-opposite parties denied the execution of any Baina by the present-opposite parties as their signatures or thump impressions were obtained by the defendants at the instigation of the defendant No.2, Md. Fazlu Miah. The signatures or thump impressions were obtained upon a blank paper by receiving the opposite parties, as such, there was no transaction of Bainanama as the

opposite parties had already transferred their land by the registered document earlier.

In the above given conflicting factual asfacts has to take a decision whether any contract was made by and between the parties for selling the land described in the schedule of the plaint. In order to answer the above question I have carefully examined the document exhibited by the parties and also the deposition made by the respective witnesses in order to prove and support the respective case. The plaintiffs exhibited the Baina dated 18.12.1985 as “Exhibit-1” in order to prove the validity of the Baina the plaintiffs adduced 5 witnesses who tried to support the plaintiffs’ case but categorically denied their presence at the time of execution of the Bainama. Moreover, a contract becomes valid and operative when there is a free will by the conducting parties in order to bind themselves. In the instant case, the defence witnesses deposed that the defendants did not have any land to sale the plaintiffs as they have already transferred their share earlier and the DWs also supported the case of the defendants by denying execution of a Baina or even transfer land to the present-petitioners, therefore, the plaintiff-petitioners could not prove their case on the standard of balance of provability which is civil standard Barden of proof.

Another important aspect in this case, under Article 6 of the President Order No.142 of 1972 contains that a suit for Specific Performance of Contract the government is a necessary party but the government was not made a party in the instant suit, therefore, the suit suffer from defect of parties which could not be urged by the present-

petitioners in the long journey of this litigation from the year of 1989 i.e. for 30 years.

I have examined the Exhibits of the respective parties practically “Exhibit-1” which is the Bainanama and Exhibits- “Kha, Ga and Gha” respectively regarding the sale of land by the defendants earlier to the said purported Bainanama of the land in question.

Regarding the claim of the present-opposite parties as to fraud practice by the petitioners in obtaining the signatures or thump impressions upon the Bainapatra the plaintiffs could not revert the allegation against the present-petitioners by way of providing sufficient evidence.

Now, I am inclined to examine the judgment and decree passed by the learned courts below, the trial court came to a wrongful conclusion to pass a partial decree on the basis of the following wrongful finding:-

বাদীগণ তা-দর বায়না নামায় ১৫২১ নং দা-গ .০৮ শতাংশ এবং ১০২০ নং দা-গ .৮০ শতাংশ জমি দাবী ক-র-ছেন। ৪ নং বিবাদী নামীয় কবলার ১৫২১ দা-গ .১৮ শতাংশ বাদ দি-য় .৪১ ১/২ শতাংশ-র অবশিষ্ট থা-ক .২৩ ১/২ শতাংশ। ঐ .২৩ ১/২ শতাংশ জমি বাদ যা-ব ১৫২০ নং দাগ থে-ক। ফ-ল ১৫২০ নং দা-গ .৫৬ ১/২ শতাংশ জমি-ত তর্কিত বায়না প-এর সময় ১-৩ নং বিবাদীর স্বত্ব ছিল। ঐ জমি বাবদই বাদীগণ চুক্তি প্রব-লর আংশিক পে-ত পা-র।

However, the appellate court below after considering the evidence in the instant case came to a lawful conclusion to allow the appeal preferred by the present-opposite parties by setting aside the judgment and decree passed by the trial court on the basis of the following finding:-

বাদীপক্ষ ২নং সাক্ষি আতিকুল হক বাদীপক্ষ ৩নং সাক্ষি দেলওয়ার খান ৪নং সাক্ষি অনিল চন্দ্র এবং ৫ নং সাক্ষী রওশন আলী তা-দর ম-ধ্য কোন সাক্ষী যে বায়না প-এর সময় বা নালিশা ভূমির দরদা-মর সময় বা নালিশা ভূমির বায়না গ্রহণ করার সময় বা নালিশা ভূমির বায়না লিখিবার সময় উপস্থিত ছি-লন। উহা আর্জীর কোথাও উ-ল্লখ ক-রন নাই। এমতাবস্থায় বাদীপক্ষ উ-ল্লিখিত সাক্ষী-দর বক্তব্য হই-ত নালিশা ভূমি সম্প-র্ক বিগত ১৮/১২/৮৫ ইং তাং বায়নাপএ আইনানুগতা-ব প্রমানিত হয় নাই।

অন্যদি-ক রেসপন-ডেন্ট বাদীপক্ষ বিজ্ঞ কৌশলী সা-হব তাহার বক্তব্য পেশকালে স্বীকার করেন যে, স্বত্ ১৯/৮৯ ইং সন চুক্তিপ্রবলের মোকাদ্দমায় সরকার পক্ষ প্র-য়োজনীয় এবং আবশ্যকীয় পক্ষ থাকা স্ব-ত্বেও ভুলবশতঃ তা-ক অএ মোকাদ্দমা পক্ষ ভুক্ত না করায় রেসপনডেন্ট বাদীপক্ষের আনীত অএ মোকাদ্দমাটি পক্ষতা-ব দো-ষ দূষিত।

In view of the above discussions and after perusing the concurrent judgment and decree passed by the learned courts below, I am of the opinion that the trial court committed an error of law by decreeing the suit in part on a misleading and non-consideration of relevant document, however, the learned appellate court after perusal of the document and evidence in the instant case, properly adjudicated the appeal and thereby came to a lawful conclusion to allow the appeal by setting aside the judgment and decree of the trial court. I am, therefore, not inclined to interfere into the impugned judgment and decree passed by the revisional court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The Section is directed to communicate this judgment and order to the concerned court and also directed to send down the lower courts' records immediately.